8. Bureaucracy
& Mid-term 2 Review

Breakout Sessions

POLS 1101

8:40am-9:35am Baldwin 322

& 9:55am-10:50am Journalism 509

SIYUAN (Siri) ZHAO

Siri.Zhao@uga.edu

https://siyuanzhao-pa.github.io/

Bureaucracy in Democracy

- **Bureaucracy:** an organization that administers or carries a set of activities. The authority of government bureaucracies comes from **the rule of law**.
- **Bureaucrats (civil servants)** are experts in their particular domains and have specific job responsibilities that fall within the bureaucracy's hierarchy of authority.
  - Different from political appointees
  - Expected to remain their jobs across administrations

- Unavoidable Tensions between **demands of democracy** and the **imperatives of bureaucracy – role conflict**
  - Aspirations of the people vs. things bureaucrats desire or require for their work
  - Most of the bureaucrats are not directly selected by voters. -> no direct representation
  - Professionalism -> Prefer Evidence-based decision making (different from public views)
  - Demands of democracy -> **high responsiveness** -> **act (too) swiftly, decisively**, which may be against professionalism as well as imperatives of bureaucracy
    - A way to eliminate such tensions: **red tape** **(rules and other constraints that democracies demand that restrict bureaucrats' behavior)**

Red Tape

- **Remember:** Red tape refers to the unnecessary, redundant, even rigid rules that the bureaucrats face – so it depicts the inside dynamics of bureaucracies
- **Examples**
  - Federal-level: lengthy budget approval processes. The proposed budget must often pass through multiple layers—division, agency, department, and finally the Office of Management and Budget (OMB). This process can take months or even a year.
  - State-level: distributing federal education grants. The state government can require school districts to submit numerous forms and performance reports. Different departments often demand overlapping data. Superintendents in Texas and New York have publicly complained that the burdensome grant processes "turn principals into full-time clerks."
- But… **Are there any advantages of red tape?**
  - Don't forget why red tape is produced!
  - Eliminate tensions between **demands of democracy** and the **imperatives of bureaucracy**

Bureaucracies at Work

- **Bureaucratic Roles**
  - Bureaucrats in the civil service system are mostly hired on their **merit**, not **political affiliation**.
    -> Ensure the **stability and professionalism** of the executive branch
    - The Pendleton Act (1883), the Hatch Act (1939)
    - The "Submerged State": did a lot of things, but usually couldn't be seen
  - Hierarchies: Operators -> Managers -> Executives (sometimes overlapping!)

- **Bureaucratic Organization & Network**
  - **Cabinet departments:** head (secretaries) -> members of the president's cabinet
  - **Independent agencies** (directly under presidential control)
  - **Regulatory commissions** (regulate aspects of the nation's economy)
  - **Government corporations** ("state-owned enterprises", SOE)
  - A **bureaucratic network** can involve the above institutions, as well as private profit-seeking and private nonprofit organizations
    - Comparisons between **pure bureaucracy** and **bureaucratic network**
      - **Chains of command**
      - Leadership (**critical tasks, organizational culture, sense of mission**)
      - **Efficiency, Accountability, Transparency**
      - **Resources and expertise**

Bureaucratic Decision Making

- **Criteria**
  - ***Satisficing*** based on bounded rationality (H. Simon)

- **Patterns**
  - Less innovative – fear of failure, blame avoidance
  - So, ***incrementalism*** – policies and programs change bit-by-bit, step-by-step

- **Factors bearing on bureaucratic decision making**
  - External forces
    - Specific conditions in the environment: complexity? predictability? stability? …
    - Expectations of peers: on-the-job learning (peer effect)
    - Specific processes, routines, and technology that bureaucrats work with in their agencies
  - Internal forces (to bureaucrats themselves)
    - Prior experiences – framing effect (how do they structure the new information they get?)
    - Group identity / membership – Do I belong to a larger professional community?
    - Personal political ideology

Administrative Discretion & Controlling the Bureaucracy

- **Enduring rivalry between Congress and President for control of the bureaucracy**
- **Why?**
  - **Constitutional Foundations**
    - **Congress:** lawmaking branch -> bureaucracies follow the laws they make.
      Besides, Congress's enumerated powers are highly related to bureaucratic control.
    - **President:** the president's job to "take Care that the Laws be faithfully executed";
      "Commander in Chief of the Army and Navy"; power to nominate officials
  - **The institutional and political perspectives**
    - **Congress**: rely on the bureaucracies to serve the constituents and get their votes
    - **President**: need bureaucracies to achieve his cross-agency policy goals influencing the whole country
- **What / Where?**
  - **Appointment:** Nomination by President, some of which need consent from the Senate
  - **Rule making: Regulations** of the bureaucracy, where presidents can exert influence, and Congress can judge whether they are at odds with legislative intent
  - **Congress oversight**: Presidents dislike it since it takes the time that could originally be used to advance the president's priorities; it can even ignite political scandals and embarrass presidents.
    - **Police patrol oversight (proactive and direct); fire alarm oversight (reactive and indirect)**

Administrative Discretion & Controlling the Bureaucracy

- **Courts and the bureaucracy – Supreme Court strikes down *Chevron*, curtailing power of federal agencies**
  - **Background**: Chevron v. Natural Resources Defense Council (1984)
    - Should courts defer to a federal agency's interpretation of a statute when the statute is ambiguous or unclear?
    - The Court ruled unanimously (6–0) that when statutory language is ambiguous, courts must apply the **Chevron Two-Step Test**:

    1) If Congress's intent is clear, courts must follow that intent.

    2) If Congress's intent is unclear, and the agency's interpretation is "reasonable", courts should defer to the agency's interpretation.

    - The case established the principle of **Chevron Deference**, one of the cornerstones of U.S. administrative law.
    - It significantly expanded **the authority of federal agencies in statutory interpretation**, since courts generally defer to agencies as long as their interpretations are reasonable.

Administrative Discretion & Controlling the Bureaucracy

- **Supreme Court strikes down *Chevron*, curtailing power of federal agencies**
  - Majority opinion
    - ***Chevron* deference is inconsistent with the Administrative Procedure Act**, a federal law. The APA directs **courts to "decide legal questions by applying their own judgment"** and therefore "makes clear that agency interpretations of statutes — like agency interpretations of the Constitution — are *not* entitled to deference.
    - Even when those ambiguities involve technical or scientific questions that fall within an agency's area of expertise, "**Congress expects courts to handle technical statutory questions**".
    - Even if courts should not defer to an agency's interpretation of an ambiguous statute that it administers, it **can** consider that interpretation when it falls within the agency's purview.
  - Dissent
    - Congress often enacts regulatory laws that contain ambiguities and gaps, which agencies **must then interpret. Agencies are more likely to have the expertise to make such decisions.**
    - ***Chevron* has been applied in thousands of judicial decisions. It has become part of the warp and woof of modern government**, supporting regulatory efforts of all kinds.
    - It is **a judicial power grab**. By overruling *Chevron*, the court had **given "itself exclusive power over every open issue** — no matter how expertise-driven or policy-laden — involving the meaning of regulatory law.

Mid-term 2 Review

Midterm 2

- **Location:** Normal Lecture Hall
- **Time: Thursday (3/19), 1:15-2:10 pm – normal lecture time**
  - If anyone needs A&T (DRC) accommodations, please contact them to make arrangements
  - If they need approval from instructors, please contact Dr. Nicholson, since he is responsible for this class.
- **What:** Congress – Courts, all we learned between two exams (See Review Sheet on eLC)
- **Suggestions**
  - Remember **my name** and **time for your breakout session (not time for lecture! But 8:40-9:35 F, or 9:55-10:50 F)**, since you will need to place them in a pile for me to grade.
  - **Key ideas** (theory, concept, professional items, SC cases) + **explanation** (when, where, who, what, why, how – not all of them; **put down what you think necessary**)
  - **If you are not sure, much is better. If you really have no idea, only telling stories is also encouraged**.
- **Layout:** Multiple choices (25-30) [Scantron 882-E] & Short-answer questions (choose 4-5) [Bluebook] – remember to buy bluebooks, scantrons, #2 pencils at the bookstore
- **Remember:** This is a CLOSED BOOK exam! Pay attention to integrity requirements!

Midterm 2 Review

- **Review Sheet on eLC**
  - Combine it with **lecture slides**, as well as breakout session slides (if you find it helpful to understand basic concepts & theories)

- **Thanks to our Lead TA, Mckinley Frees!**
  - **Key items review**: https://quizlet.com/954378427/pols-1101-midterm-2-key-terms-review-flash-cards/?funnelUUID=00accdac-af35-4659-851e-fdf4954236fc
  - **Study guide**: https://quizlet.com/study-guides/pols-1101-midterm-2-key-terms-review-fe50d865-3d53-437b-9b77-70df3462d078?funnelUUID=72497043-5a96-483f-a405-5e9de2876c20

  [Just Overlook the Civil Rights Part]

Midterm 2 Review (in-class)

- **Potential things to do**
  - 1) Read the textbook (Courts), and do the chapter quiz (pay attention to the review sheet – anticipate what is important)
  - 2) Multiple Choice Questions (in which most of you need to improve)

    REMEMBER TO COVER ALL THE THINGS YOU CAN THINK OF!

    - Lecture slides (context; basic understanding; sometimes details)
    - Textbook [based on the review sheet – find concepts: **a) you are not familiar with; b) that are not covered in lectures**]
    - Confusion pairs (e.g. executive order vs. signing statement? independent agencies vs. regulatory commissions?)
  - 3) Short answer questions
    - If you address the issues about multiple choices, there should be not much difficulties in short answers.
    - Pay attention to materials that include a few aspects (e.g. incumbent advantages)
    - Just remember to make it clear – a) bullet points; b) one question, one page; c) try to explain the items you use

Next week…

- Spring break (no classes)
- Midterm exam 2 is on the Thursday coming out of the spring break.

- Feel free to email me if you have any questions!
- ENJOY YOUR SPRING BREAK!